

Opinion of GORSUCH, J.

IV

A

If Louisiana’s path to an affirmance is a difficult one, the dissent’s is trickier still. The dissent doesn’t dispute that the Sixth Amendment protects the right to a unanimous jury verdict, or that the Fourteenth Amendment extends this right to state-court trials. But, it insists, we must affirm Mr. Ramos’s conviction anyway. Why? Because the doctrine of *stare decisis* supposedly commands it. There are two independent reasons why that answer falls short.

In the first place and as we’ve seen, not even Louisiana tries to suggest that *Apodaca* supplies a governing precedent. Remember, Justice Powell agreed that the Sixth Amendment requires a unanimous verdict to convict, so he would have no objection to that aspect of our holding today.

minds us that, at points and places in our history, women were not permitted to sit on juries. See *post*, at 153–154. But we hardly need *Apodaca*’s functionalism to avoid repeating that wrong. Unlike the rule of unanimity, rules about who qualified as a defendant’s “peer” varied considerably at common law at the time of the Sixth Amendment’s adoption. Reflecting that fact, the Judiciary Act of 1789—adopted by the same Congress that passed the Sixth Amendment—initially pegged the qualifications for federal jury service to the relevant state jury qualification requirements. 1 Stat. 88. As a result, for much of this Nation’s early history the composition of federal juries varied both geographically and over time. See Hickey, Federal Legislation: Improvement of the Jury System in Federal Courts, 35 Geo. L. J. 500, 506–507 (1947); *Taylor v. Louisiana*, 419 U. S. 522, 536 (1975). Ultimately, however, the people themselves adopted further constitutional amendments that prohibit invidious discrimination. So today the Sixth Amendment’s promise of a jury of one’s peers means a jury selected from a representative cross-section of the entire community. See *Strauder*, 100 U. S., at 307–308; *Smith v. Texas*, 311 U. S. 128, 130 (1940); *Taylor*, 419 U. S., at 527.

Relatedly, the dissent suggests that, before doing anything here, we should survey all changes in jury practices since 1791. See *post*, at 154–155, n. 26. It sounds like an interesting study—but not one that could alter the plain meaning of the Constitution or oblivate its undisputed unanimity requirement.